

**Superior Court of the State of California
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32**

Date: June 16, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/mediarelations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at <https://www.occourts.org/mediarelations/aci.html>.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	KOPICK, INC. VS. EPLEX, INC. 2025-01491949	MOTION TO BE RELIEVED AS COUNSEL OF RECORD The motion of attorneys Samuel Yu and Daniel Yu and law firm Kahana & Feld LLP to be relieved as counsel for defendant Eplex, Inc. is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorneys will be relieved as counsel of record for client effective upon filing of proof of service of the signed order on client. Moving attorney is to give notice of ruling which includes notice to Defendant that corporations must be represented by counsel.
2.	FLORES VS. FCA US, LLC 2023-01366471	MOTION TO COMPEL PRODUCTION Plaintiff Francisco Javier Flores’ motion to compel Defendant, FCA US, LLC (“FCA”) to provide responses, without objections, to Plaintiff’s Request for Production of Documents, Set One, is MOOT. On May 22, 2024, Plaintiff served Requests for Production of Documents, Set One (“RFPs”) on FCA. (Rucker Decl., ¶ 4, Ex. 1.) Plaintiff sent a meet and confer letter to FCA on December 31, 2025. (Rucker Decl., ¶ 7, Ex. 2.) On January 13, 2026, FCA served verified responses to Requests for Production of Documents, Set One. (Gruzman Decl., ¶ 4, Ex. 2.) Defendant has shown the responses are not untimely based on an agreement between FCA and Plaintiff’s counsel’s firm Strategic Legal Practices (“SLP”). Specifically, FCA and SLP entered into an informal arrangement for all cases between FCA and Strategic Legal Practices. (Hugret Decl., ¶ 4.) The informal arrangement was negotiated directly with SLP’s Founding Partner Payam Shahian in December 2024. (Hugret Decl., ¶ 4.) The arrangement allowed Plaintiff’s counsel to serve discovery requests, while FCA received an open-ended extension to respond to Plaintiff’s discovery. (Hugret Decl., ¶ 5.) The basis of this agreement was that FCA would not be required to respond to discovery served by SLP during the pendency of this arrangement unless such responses were specifically requested by SLP, at which time, FCA would promptly provide responses. (Hugret Decl., ¶ 5.) As part of this agreement. FCA also agreed to informally produce certain case documents, such as the warranty claims and call logs. (Hugret Decl., ¶ 5.) FCA complied with its portion of the agreement and provided informal document productions for 185 cases by January 27, 2025. (Hugret Decl., ¶ 5.) FCA further complied with the agreement by serving verified responses to the RFPs on January 13, 2026, and producing documents, Bates Number 00001-001527. Therefore, the Motion is MOOT. Plaintiff’s request for sanctions is DENIED.

		Moving party to give notice.
3.	HOME OF THE MINISTERING ANGEL VS. SENECA FAMILY OF AGENCIES 2025-01498434	1. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES Defendant Seneca Family of Agencies’s Motion to Compel Further Responses to its Form Interrogatories, set one, is GRANTED. Plaintiff is ORDERED to provide a further response to interrogatory no. 17.1 and provide a verification by the person with personal knowledge of Plaintiff’s compliance with its discovery obligations. Defendant has reserved its request for sanctions for a separate motion. (See <i>London v. Dri-Honing Corp.</i> (2004) 117 Cal.App.4th 999, 1008.) Defendant’s requests for judicial notice are granted. (Evid. Code, § 452(d).) The Court finds Plaintiff has failed to comply with its discovery obligations. Code of Civil Procedure section 2030.220(c) requires a party to “make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations” Plaintiff responded to numerous subparts of interrogatory no. 17.1 stating “(b) Responding Party and its representatives lack personal knowledge of facts sufficient at this time to either admit or deny the request. Responding Party’s representatives directly involved in the 1987 transaction inclusive of Billy Eugene Small have since passed away. [¶] (c) Responding Party is informed and believes that Dan McQuaid (address and telephone number unknown to Responding Party) or Lloyd Copenbarger, Esq. (address and telephone number unknown to Responding Party) may have information relating to the request.” Plaintiff’s person most knowledgeable, Doris Small, signed the verification as an officer of Plaintiff stating: “[t]he matters stated in the foregoing document are true of my own knowledge” (Averett Decl., Ex. J.) Later, Small testified at her deposition, she did not conduct a reasonable search. (Averett Decl., Ex. P, 48:4-62:25.) Thus, Plaintiff is compelled to provide a further response to interrogatory no. 17.1 after conducting “reasonable and good faith effort to obtain the information” and is ordered to provide a verification by the person with personal knowledge of the efforts. 2. MOTION TO COMPEL PRODUCTION Defendant Seneca Family of Agencies’s Motion to Compel Further Responses to its Requests for Production, set one, is GRANTED.

Plaintiff is ORDERED to provide a further response to requests nos. 2-10 and 13-22 and provide a verification by the person with personal knowledge of Plaintiff's compliance with its discovery obligations.

Defendant has reserved its request for sanctions for a separate motion. (See *London v. Dri-Honing Corp.* (2004) 117 Cal.App.4th 999, 1008.)

Defendant's requests for judicial notice are granted. (Evid. Code, § 452(d).)

The Court finds Plaintiff has failed to comply with its discovery obligations. Code of Civil Procedure section 2031.230 requires a party to "affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand." Plaintiff responded to each request: "After conducting a diligent search and reasonable inquiry, Responding Party has no documents at this time in its custody, control or possession responsive to this request. Responding Party's inability to produce documents subject to the request is based on Responding Party's review of all documents in Responding Party's current possession and control, and in Responding Party's present inability to determine whether such documents existed at any time. If such documents did exist, they may be in the possession of Dan McQuaid (address and telephone number unknown to Responding Party) or Lloyd Copenbarger, Esq. (address and telephone number unknown to Responding Party)." (Averett Decl., Ex. I.)

Plaintiff's person most knowledgeable, Doris Small, signed the verification as an officer of Plaintiff stating: "[t]he matters stated in the foregoing document are true of my own knowledge" (Averett Decl., Ex. I.) Later, Small testified at her deposition, she did not conduct a reasonable search and inquiry. (Averett Decl., Ex. P, 48:4-62:25.) Thus, Plaintiff is compelled to provide a further response to nos. 2-10 and 13-22 after conducting "a diligent search and reasonable inquiry" and is ordered to provide a verification by the person with personal knowledge of the search and inquiry.

3. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS

Defendant Seneca Family of Agencies's Motion to Compel Further Responses to its Requests for Admission, set one, is GRANTED.

Plaintiff is ORDERED to provide a further response to requests nos. 1, 2, 4, 6, 8, 9-11, 13-17, and 20-26 and provide a verification by the person with personal knowledge of Plaintiff's compliance with its discovery obligations.

		Defendant has reserved its request for sanctions for a separate motion. (See <i>London v. Dri-Honing Corp.</i> (2004) 117 Cal.App.4th 999, 1008.) Defendant's requests for judicial notice are granted. (Evid. Code, § 452(d).) The Court finds Plaintiff has failed to comply with its discovery obligations. Code of Civil Procedure section 2033.220(c) requires a party to state "a reasonable inquiry concerning the matter in the particular request has been made" Plaintiff responded to each request: "Responding Party conducted a reasonable inquiry into the matters addressed in the request. That inquiry included reviewing documents in Responding Party's possession, custody, or control and attempting to identify individuals with knowledge of the transactions or occurrences giving rise to the above-captioned action. However, after reasonable inquiry and investigation, Responding Party presently lacks sufficient information or knowledge to admit the truth of the matter stated in the request, and therefore Responding Party denies." (Averett Decl., Ex. H.) Plaintiff's person most knowledgeable, Doris Small, signed the verification as an officer of Plaintiff stating: "[t]he matters stated in the foregoing document are true of my own knowledge" (Averett Decl., Ex. H.) Later, Small testified at her deposition, she did not conduct a reasonable inquiry. (Averett Decl., Ex. P, 48:4-62:25.) Thus, Plaintiff is compelled to provide a further response to nos. 1, 2, 4, 6, 8, 9-11, 13-17, and 20-26 after conducting "a diligent search and reasonable inquiry" and is ordered to provide a verification by the person with personal knowledge of the inquiry.
4.	LIMON VS. RBANQUEST 2023-01361669	1. MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Plaintiffs Francisco Limon and Belen Limon's unopposed Motion to Compel Deposition of Defendant Rohit Eddie Bhatia is DENIED. Code of Civil Procedure, section 2024.020 provides: (a) Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action. (b) Except as provided in Section 2024.050, a continuance or postponement of the trial date does not operate to reopen discovery proceedings. Code of Civil Procedure, section 2024.050, subdivision (a) provides: "On motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery

heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.”

Here, the court initially set trial for 5/1/26. (ROA 78.) On 4/28/26, the court, on its own motion, continued trial to 6/26/26. (ROA 138.) The court did not reopen discovery (Ibid.) Thus, the last day to hear this motion was 4/16/26. Plaintiffs served and filed the motion on 1/14/26, noticing the hearing for 6/16/26. However, Plaintiffs failed to move to reopen discovery under Section 2024.050.

The motion is untimely and therefore denied.

2. MOTION TO STRIKE ANSWER

Plaintiffs Francisco Limon and Belen Limon’s unopposed Motion to Strike Answer and Enter Default of Defendant Jaswant Rai Enterprises Inc. dba R Banquet (“R Banquet”) is DENIED.

Plaintiffs move to strike R Banquet’s answer and enter its default on the grounds that R Banquet has been an unrepresented corporation since 11/18/25.

Pursuant to Code of Civil Procedure section 436, a court may, upon a motion made pursuant to section 435 or at any time in its discretion, “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., §436, subd. (b).)

“[A] corporation cannot represent itself in a court of record either in propria persona or through an officer or agent who is not an attorney.” (*Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd.* (2002) 99 Cal. App. 4th 1094, 1101, citing *Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 727, 729 (*Merco*).) “It is the duty of the trial judge to advise the representative of the corporation of the necessity to be represented by an attorney.” (*Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284, fn. 5.)

On 11/18/25, the Court granted Defense counsel’s motion to be relieved as counsel for R Banquet, which is a California corporation. (ROA 106, 109; Plummer Decl., ¶¶ 2, 3, Exs. A, B.) The minute order stated, “James Perez will be relieved as counsel of record for Defendants effective upon filing of a proof of service of the signed order on client” and required the moving attorney to give notice. (ROA 109.) The signed order granting the motion includes a “NOTICE TO CLIENT” advising R Banquet that it is no longer represented by counsel, a corporation cannot represent itself, and “[f]ailure to retain an attorney may lead to an order striking the pleadings or to the entry of a default judgment.” (ROA 106 at ¶ 10; Plummer Decl., ¶ 3, Ex. B at ¶ 10.)

		Plaintiffs attempted to reach R Banquet by both mail and telephone to determine if it intended to obtain representation by counsel but never reached a living person and never received a call back. (Plummer Decl., ¶ 6.) The court finds Plaintiffs adequately attempted to meet and confer with Defendant about the status of its representation prior to filing this motion. (See Code Civ. Proc., § 435.5, subd. (a).) There is no evidence that R Banquet has obtained counsel. However, to date, James Perez has not filed a proof of service of the signed order granting the motion to be relieved as counsel on R Banquet. Thus, James Perez is still R Banquet’s attorney of record. The motion is DENIED.
5.	KRUPP VS. CALIFORNIA AUTOMOBILE INSURANCE COMPANY 2023-01370850	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT The Motion of Plaintiffs Marshall and Serafina Krupp individually and as trustees for the Marshall Krupp and Serafina Krupp Family Revocable Trust for leave to file a Third Amended Complaint (“TAC”) is GRANTED. “The court may . . . in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading . . .” (Code Civ. Proc. § 473, subd. (a)(1).) “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc. § 576.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (<i>Morgan v. Sup.Ct.</i> (1959) 172 Cal.App.2d 527, 530.) “Courts must apply a policy of liberality in permitting amendments at any stage of the proceeding, including during trial, when no prejudice to the opposing party is shown. However, even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.” (<i>P&D Consultants, Inc. v. City of Carlsbad</i> (2010) 190 Cal.App.4th 1332, 1345; internal citations and internal quotation marks omitted.) “Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial, this policy should be applied only ‘[w]here no prejudice is shown to the adverse party. . . .’ [Citation.] A different result is indicated ‘[w]here inexcusable delay and probable prejudice to the opposing party is shown.’ [Citation.]” (<i>Magpali v. Farmers Group, Inc.</i> (1996) 48 Cal.App.4th 471, 487.) Plaintiffs seek to file a TAC to add factual allegations supporting punitive damages and a prayer for punitive damages.

		Defendant California Automobile Insurance Company (“CAIC”) contends that Plaintiffs’ delay in seeking leave to amend to allege punitive damages is unwarranted. Plaintiff states that the facts underlying the claim – CAIC’s claim documentation and underwriting file and guidelines – first came to light in CAIC document productions on December 11, 2024 and February 28, 2025. (Wilkinson Decl., ¶ 8.) However, it was during the September 8, 2025 deposition of CAIC Underwriting Manager Karen Gallagher that Plaintiffs first learned that: (a) Mercury never inspected the property a second time during the 60-day cancellation period, both as a matter of fact in this case and a matter of policy in all cases; (b) CAIC Claims Manager Michael Burton made the decision to deny the claim and purportedly rescind the policy; and (c) the insurance policy was bound before Mercury even saw the application. (Wilkinson Decl., ¶ 7.) Plaintiff contends the full picture of what CAIC did with respect to Plaintiffs’ insurance claim did not develop until November 18, 2025, when the Court sustained Plaintiffs’ demurrer to CAIC’s Second Amended Cross-Complaint finding there was no basis for CAIC’s fraud in the insurance application theory which was CAIC’s basis for rescinding Plaintiffs’ insurance policy and denying Plaintiffs’ claim. Therefore, the court finds the delay in seeking leave to allege punitive damages was not unreasonable. Further, CAIC will not be prejudiced since the court continued the trial date to October 23, 2026. (Wilkinson Supp. Decl., ¶ 9.) Lastly, CAIC argues the proposed TAC fails to state a viable claim for punitive damages. CAIC may contest the sufficiency of allegations by a motion to strike, demurrer, motion for judgment on the pleadings or other appropriate proceedings. (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048 (<i>Kittredge</i>) [“As Justice Kaufman has noted, even if the proposed legal theory is a novel one, ‘the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.’ [Citation.]”]) Plaintiffs are to electronically file and serve the proposed Third Amended Complaint within 5 days. Plaintiffs to give notice.
6.	CHAVARRIA VS. LIM 2024-01390474	MOTION FOR LEAVE TO FILE CROSS COMPLAINT Defendant Khanh Q. Nguyen’s Motion for Leave to File a Cross-Complaint is GRANTED. Nguyen is ORDERED to file the attached Cross-Complaint within 5 days of this order.

		“A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.” (Code Civ. Proc., § 426.50.) There is no indication of bad faith in filing the proposed Cross-Complaint at this time and the Motion is unopposed. Further, Nguyen’s counsel states they mistakenly failed to file the proposed cross-complaint when filing Nguyen’s answer. (Garcia Decl., ¶ 5.) Therefore, the Court grants leave to file the proposed cross-complaint.
8.	U.S. BANK NATIONAL ASSOCIATION DBA U.S. BANK EQUIPMENT FINANCE VS. SEED LANDCARE, INC. 2025-01524369	APPLICATION FOR RIGHT TO ATTACH ORDER/WRIT OF ATTACHMENT Plaintiff U.S. Bank National Association dba U.S. Bank Equipment Finance’s Application for a Right to Attach Order and Writ of Attachment is GRANTED. Plaintiff seeks to attach property to secure the recovery of \$36,293.60. <u>Legal Standard</u> Upon the filing of a complaint or anytime thereafter, a plaintiff may apply for a right to attach order and writ of attachment. (Code Civ. Proc., § 484.010.) Following a hearing on the application, the court shall issue a right to attach order if it finds all of the following: (1) The claim upon which the attachment is based is one upon which an attachment may be issued; (2) The plaintiff has established the probable validity of the claim upon which the attachment is based; (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; and (4) The amount to be secured by the attachment is greater than zero. (Code Civ. Proc., § 484.090, subd. (a).) <u>Claim Subject to Attachment</u> Pursuant to Code of Civil Procedure section 483.010, an attachment may be issued where the claim is based upon a contract, the claimed amount is a fixed or readily ascertainable amount not less than five hundred dollars (\$500), and the claim is not secured by an interest in real property.

Plaintiff contends Defendant entered into a Software Payment Agreement (Agreement) with Plaintiff's assignor TD Synnex Capital, LLC (TD Synnex). (Rohlik Decl., ¶ 3, Ex. 1.) The Agreement provided for one "Managed Service Contract Managed IT Gold 5 years" with financing from TD Synnex, for which Defendant was to make 60 monthly payments of \$615.77. (Rohlik Decl., ¶ 3, Ex. 1.) TD Synnex assigned all of its right, title, and interest in the Agreement to Plaintiff. (Rohlik Decl., ¶ 3.)

Plaintiff contends Plaintiff and its assignor have performed or were excused performing the conditions of the Agreement. (Rohlik Decl., ¶ 4.) Plaintiff further contends Defendant breached the Agreement by failing to make the monthly payment due 8/1/23 or any payment thereafter. (Rohlik Decl., ¶ 4.) Plaintiff contends the total amount outstanding is \$33,793.60 together with interest at the rate of 16% per annum. (Rohlik Decl., ¶ 6.)

Plaintiff's claim is based upon a business-related contract, is a readily ascertainable amount not less than \$500, is unsecured by an interest in real property and is therefore the type of claim subject to a writ of attachment under Code of Civil Procedure section 483.010.

Probable Validity

A claim has probable validity where it is more likely than not the plaintiff will obtain a judgment against the defendant on that claim. (Code Civ. Proc., § 481.190.) The probable validity determination requires the court to consider the relative merits of the positions of the respective parties and make a determination as to the probable outcome of the litigation. (*Loeb & Loeb v. Beverly Glen Music, Inc.* (1985) 166 Cal.App.3d 1110, 1120.) The plaintiff bears the burden of proving the probable validity of its claims. (*Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1481.)

As discussed above, Plaintiff has submitted evidence Defendant breached the Agreement by failing to make payments due. (Rohlik Decl. ¶¶ 3-6.)

In opposition, Defendant contends Plaintiff cannot demonstrate probable validity as the Agreement "was signed by the purported officer manager Lindsey Merkin. Ms. Merkin was not an officer of the corporation, was not the office manager, and had no authority to enter into the contract for Defendant Seed Landcare Inc." While Defendant refers to the Declaration of Kyle Johnson, Defendant's President, in support of its contention, the declaration is not attached to the motion.

"Statements by an attorney, whether made in court or in a brief, are not evidence." (*Muskan Food & Fuel, Inc. v. City of Fresno* (2021) 69 Cal.App.5th 372, 390-391 [citations omitted].) As such,

		Defendant’s statements in its brief regarding Ms. Merkin’s authority are insufficient to challenge Plaintiff’s evidence Defendant breached the Agreement. Accordingly, the Court finds Plaintiff has demonstrated the probable viability of its claims for breach of written agreement. <u>Attorneys’ Fees and Costs</u> Code of Civil Procedure section 482.110, subdivision (b) provides the Court may, in its discretion, include an estimated amount for costs and allowable attorney’s fees in the amount to be secured by the attachment. Attorneys’ fees are “allowable” where provided for in the contract or authorized by statute or law. (Civ. Code, §§ 1717, Code Civ. Proc. §§ 1021 et seq., 1033.5.) The Agreement provides, “Customer [defined as Seed Landcare, Inc.] shall be responsible for all attorneys’ fees and costs, including, without limitation, costs of repossession, as a result of Originator [defined as TD Synnex Capital, LLC] or its Assignee enforcing its rights following an Event of Default.” (Rohlik Decl., ¶ 7, Ex. 1 at § 11.) Plaintiff’s Application indicates the amount to be secured includes an amount for estimated allowable attorneys’ fees of \$1,500 and costs of \$1,000. (ROA 24; Rohlik Decl., ¶ 10.) The Court includes the estimated amount for allowable attorneys’ fees and costs in the amount to be attached. The Court finds Plaintiff has met the requirements under Code of Civil Procedure section 484.090. The Court GRANTS Plaintiff’s Application in the amount of \$36,293.60. The Court ORDERS Plaintiff to post an undertaking in the amount of \$10,000.00 within 10 days.
9.	DOE VS. IHERB, LLC 2025-01505285	DEMURRER TO AMENDED COMPLAINT The Demurrer of Defendants iHerb, LLC and Trent Kruse to Plaintiff Jane Doe’s First Amended Complaint (FAC) is SUSTAINED with leave to amend as to Plaintiff’s second cause of action against Defendant Kruse and ninth cause of action against Defendant iHerb, and OVERRULED as to the remaining causes of action. <u>Legal Standard:</u> “The rules by which the sufficiency of a complaint is tested against a general demurrer are well settled. We not only treat the demurrer

as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context. If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (*Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1268 [cleaned up].)

At the pleading stage, the Court must liberally construe the complaint, drawing all reasonable inferences in favor of Plaintiffs’ asserted claims. (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 919.)

“A demurrer must dispose of an entire cause of action to be sustained. Thus, a court must overrule a demurrer to a cause of action if it is based on at least one viable theory of liability.” (*Thompson v. Spitzer* (2023) 90 Cal.App.5th 436, 451–452 [cleaned up].) “A plaintiff is permitted to plead alternative inconsistent theories.” (*Dubin v. Robert Newhall Chesebrough Trust* (2002) 96 Cal.App.4th 465, 477.) “[C]ourts may not turn a demurrer into a contested evidentiary matter by determining what the proper interpretation of the evidence is. A court errs when its decision reflects such a consideration of the evidence.” (*Panterra GP, Inc. v. Superior Court of Kern County* (2022) 74 Cal.App.5th 697, 711 [cleaned up].)

First, Second, and Fourth Causes of Action – Harassment, Sex Discrimination, and Failure to Prevent Under FEHA:

Plaintiff alleges she was employed as HR Director by iHerb between May 2022 – September 2024. Plaintiff alleges she was sexually assaulted by iHerb’s Senior Vice President of Investor Relations, Defendant Kruse, after he apparently “roofied” her at a work event on 7/24/24. (FAC, ¶¶ 16-34.) Plaintiff alleges that rather than investigate her HR report of the incident, Defendant iHerb terminated her a month later despite good job performance. (¶¶ 35-37.)

Plaintiff alleges Defendants iHerb and Kruse violated FEHA’s prohibition of harassment and sex discrimination in the first and second causes of action and that iHerb failed to prevent harassment and discrimination in the fourth cause of action.

As to the first cause of action for harassment, Defendants contend there is no allegation of severe or pervasive conduct – only an isolated incident on 7/24/24.

Plaintiff responds that the single incident alleged in the complaint was adequately extreme to support her claim for harassment. “A single harassing incident involving ‘physical violence or the threat thereof’ may qualify as being severe in the extreme.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1043.) Here, construing Plaintiff’s

FAC in the light most favorable to her, she has adequately stated a claim for harassment under *Hughes* based on the 7/24/24 incident and Defendants’ response thereto.

Regarding the second cause of action for sex discrimination, Defendants argue (1) Plaintiff fails to allege iHerb terminated her because of her sex and (2) Kruse cannot be liable for discrimination as an individual Defendant because he was not Plaintiff’s “employer” under *Raines v. U.S. Healthworks Medical Group* (2023) 15 Cal.5th 268 and *Reno v. Baird* (1998) 18 Cal.4th 640. Plaintiff responds that she was targeted by Defendant Kruse because she was a woman and that Government Code section 12940(j)(3) provides for individual liability of an employee for harassment.

As to iHerb, Plaintiff has adequately alleged that iHerb engaged in discrimination including ratifying the alleged sexual misconduct by Defendant Kruse and treating her differently in her employment as a result of the incident. (FAC, ¶¶ 58-64.) The Court must take these allegations as true at the pleading stage.

As to Kruse, Plaintiff argues he may be individually liable for “harassment” under Government Code section 12940(j)(3), she does not address the cases cited by Defendants stating that individual managers/employees cannot be liable for FEHA discrimination claims. “[I]ndividuals who do not themselves qualify as employers may not be sued under the FEHA for alleged discriminatory acts.” (*Raines v. U.S. Healthworks Medical Group*, *supra*, 15 Cal.5th 268, 276, citing *Reno v. Baird*, *supra*, 18 Cal.4th 640, 663.) Therefore, the demurrer is sustained as to the second cause of action against Defendant Kruse.

Regarding the fourth cause of action, Defendant iHerb argues it is not viable because Plaintiff has not established the underlying claims for harassment or discrimination, and Plaintiff has not shown iHerb had prior notice of Defendant Kruse’s alleged propensity for sexual misconduct. As set out above, Plaintiff has adequately pled underlying claims for harassment and discrimination, and sufficiently alleges Defendant iHerb “knew of Mr. Kruse’s penchant for sexual harassment and gender discrimination against its female employees but took no action to remedy the situation.” (FAC, ¶ 23.)

Seventh Cause of Action – UCL:

Plaintiff’s seventh causes of action (erroneously referred to as the sixth cause of action in Defendant’s motion) is based on Defendant iHerb’s alleged “acts of harassment and retaliation...in violation of California law.”

Defendant asserts that Plaintiff merely alleges termination and fails to plead specific facts supporting this claim.

While “an action under the UCL is not an all-purpose substitute for a tort or contract action,” at the pleading stage the plaintiff must merely allege unlawful, unfair, or fraudulent conduct to support the claim and “[a]n unlawful business practice under the UCL is anything that can properly be called a business practice and that at the same time is forbidden by law.” (*Morgan v. AT&T Wireless Services, Inc.* (2009) 177 Cal.App.4th 1235, 1254; *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1150)

Here, Plaintiff has adequately alleged facts regarding Defendant’s harassment/discrimination which are incorporated into this claim and sufficient to show “unlawful conduct” under the UCL at this stage. Defendant may pursue discovery to further determine Plaintiff’s factual basis for this claim.

Ninth Cause of Action – Negligent Hiring/Supervision:

Defendant argues Plaintiff fails to allege a factual basis for her negligence claim because she admittedly does not recall much of the night of the incident and fails to allege that iHerb knew or should have known that Defendant Kruse would go into her hotel claim. Moreover, Defendant contends this claim is precluded by the workers compensation doctrine, which generally prohibits common law negligence claims arising out of the employment relationship.

Plaintiff responds that she adequately alleges iHerb hired Kruse, knew of Kruse’s unfitness, and harm to Plaintiff resulted. However, Plaintiff does not address Defendant’s workers compensation exclusivity argument.

Simple negligence claims by an employee against their employer are generally barred by the workers compensation exclusivity doctrine. (Labor Code §§ 3601, 3602; see *Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1134.) “Physical and emotional injuries sustained in the course of employment are preempted by the workers’ compensation scheme and generally will not support an independent cause of action. Emotional injuries caused by workplace discipline, including termination, fall within this rule.” (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 161 [cleaned up]; see Labor Code 3600 et seq.)

Here, Plaintiff fails to explain how the claim for negligent hiring/retention against iHerb falls outside the workers compensation exclusivity doctrine. Therefore, the demurrer is sustained as to this claim.

Tenth Cause of Action – IIED:

Defendants argue Plaintiff’s claim for intentional infliction of emotional distress (IIED) fails to allege “extreme and outrageous” conduct by Defendants. Plaintiff responds that a sexual assault by a

		high-ranking corporate executive is sufficiently extreme and outrageous at the pleading stage. “A cause of action for IIED requires proof of: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress.” (<i>Crouch v. Trinity Christian Center of Santa Ana, Inc.</i> (2019) 39 Cal.App.5th 995, 1007.) At the pleading stage, the fact alleged in the fact could demonstrate extreme and outrageous conduct by Defendants. therefore, the demurrer is overruled as to this claim. Plaintiff may amend her second cause of action against Defendant Kruse and her ninth cause of action against Defendant iHerb. Plaintiff is not permitted to further amend her complaint to allege additional claims without leave of court.
10.	CLAY MONAGHAN VS. TIK-TOK INC. 2024-01400215	MOTION TO SEAL Defendant Keith Vermeeren’s Motion to Seal is GRANTED. “The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. Substantive courtroom proceedings in ordinary civil cases, and the transcripts and records pertaining to these proceedings, are presumptively open.” (<i>McNair v. National Collegiate Athletic Assn.</i> (2015) 234 Cal.App.4th 25, 31 (cleaned up); see <i>In re Marriage of Nicholas</i> (2010) 186 Cal.App.4th 1566, 1575 [strong presumption of public access to court records].) California Rules of Court, Rule 2.551(b)(1) states that: “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” California Rules of Court, Rule 2.550(d) states the following: “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.”

Here, Defendant seeks to seal the unredacted name of the minor K.V. that appears in the September 28, 2025 deposition transcript of Defendant's ex-wife, Lindsay Vermeeren. Excerpts of the transcript are attached as Exhibit 6 to the Compendium of Exhibits in support of Defendant's Motion for Summary Judgment or Adjudication.

Specifically, Defendant filed the redacted version, which redacts K.V.'s first name from five separate pages of Lindsay Vermeeren's testimony at pg. 5:16; pg. 12:17, 18, 20, 22; pg. 15:3, 5, 18, 22; pg. 54:4, 7, 18, 21, 24; and pg. 55:2, 5, 8, 13, 17. (Kim Decl., ¶¶ 5, 6; see also ROA 218.) This is the only material redacted from any of the exhibits to the Compendium. (Kim Decl., ¶¶ 5, 7.) Defendant also filed the unredacted version of the transcript conditionally under seal. (ROA 221.)

Defendant's MSJ was heard and granted on 4/14/26. (See ROA 264.) K.V.'s date of birth is August 10, 2008. (Kim Decl., ¶ 9.) Therefore, K.V. was a minor when the motion was heard. California protects the identities of minors who are parties or implicated in court actions. (See, e.g. Code of Civ. Proc. § 372.5 [allowing a guardian ad litem appointed to represent a minor to appear under a pseudonym]; see also *In re Edward S.* (2009) 173 Cal.App.4th 387, 392, fn. 1 [recognizing that "to protect the privacy of minors involved in delinquency, dependency, and family law cases, many courts of appeal have recently adopted the practice of identifying such minors only by their initials, in accordance with an "informal recommendation of the Reporter of Decisions."]; *Adoption of O.M.* (2008) 169 Cal.App.4th 672, 675, fn. 1 ["In order to protect the privacy of the minor (see Cal. Style Manual (4th ed.2000), §§ 5:9, 5:10), and in accordance with the informal recommendation of the Reporter of Decisions, we refer to the parties and other persons mentioned in our opinion only by their initials."])

The motion is unopposed.

The motion is granted. Moving Defendant has shown the proposed redactions are narrowly tailored to protect an overriding interest of protecting the identity of a minor, which interest would be harmful if the motion was denied.